



U.S. Department
of Transportation

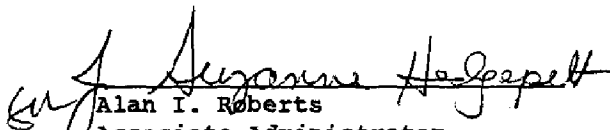
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9646 (EXTENSION)
ORIGINAL November 23, 1988
CORRECTED COPY

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9646 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to May 31, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUL 22 1992

(DATE)

Dist: FRA

EXEMPTION HOLDER

APPLICATION DATE

U. S. Department of Defense
Falls Church, VA

February 1, 1992

U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT E 9646
(CORRECTED COPY)

400 Seventh Street, S.W.
Washington, D.C. 20590

NOV 23 1988

1. The Department of Defense, Falls Church, Virginia, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of explosives and a corrosive liquid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation by rail of freight shipping containers loaded with combinations of packages of Class A, B and C explosives and a corrosive liquid, not authorized in 49 CFR 174.81, and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on application from Military Traffic Management Command dated July 28, 1986 and June 16, 1988, submitted in accordance with 49 CFR 107.103 and 107.105 and the public proceeding thereon and supplemental letter dated November 23, 1988.
3. HAZARDOUS MATERIALS (Descriptor and class). Various munitions specified in the application and a corrosive liquid (chlorosulfonic acid) classed as Class A, B and C explosives and corrosive material; respectively.
4. PROPER SHIPPING NAME (49 CFR 172.101). Generic or specific shipping name, as appropriate for the materials listed in the application.
5. REGULATION AFFECTED. 49 CFR 174.81.
6. MODE OF TRANSPORTATION AUTHORIZED. Rail freight.
7. SAFETY CONTROL MEASURES. Packaging prescribed is as authorized in Part 173 of 49 CFR for the specific munitions being shipped. Packaging requirements for the corrosive liquid must be as provided in 173.244.
8. SPECIAL PROVISIONS.
 - a. A copy of this exemption and application for exemption must accompany each shipment.
 - b. Packaging, blocking, and bracing in each freight container must be inspected by DOD representatives and any deficiencies corrected to comply with the requirements of 49 CFR before any shipment is made.
 - c. The train on which the freight containers are carried must not make any scheduled stops between point of origin of the shipments (Jacksonville, Florida) and destination (Charleston, South Carolina).
 - d. In addition to paragraph 8.C. a one-time round trip rail shipment of approximately 300 freight containers may be made from Jacksonville, Florida to Military Ocean Terminal, Sunny Point, Southport, North Carolina. This shipment must be completed by January 31, 1989.

e. Railcars carrying freight containers which are loaded with combinations of packages of hazardous materials not authorized in 174.81 must be buffered at each end with at least two rail cars loaded with inert ordnance materials.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the freight container must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. August 31, 1990.

Issued at Washington, D.C.:

NOV 23 1988

sr/ *Suzanne Hedgcock*
Alan I. Roberts
Director

(DATE)

Office of Hazardous Materials Transportation

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: FRA